

9:00 AM

Line 7

25-CIV-04482 CARLOS TAPIA, ET AL VS. CHRISTINA CORPUS, INDIVIDUALLY AND
IIN HER OFFICIAL CAPACITY, ET AL

CARLOS TAPIA
CHRISTINA CORPUS, INDIVIDUALLY AND
IN HER OFFICIAL CAPACITY

GRANT A WINTER
WAI SHUN WILSON LEUNG

Defendant Daniel Perea's Motion for Leave to File Second Amended Cross-Complaint

TENTATIVE RULING:

For the reasons stated below, Defendant/Cross-Complainant Daniel Perea's ("Perea") "Motion for Leave to File Second-Amended Cross-Complaint," filed May 6, 2026, is GRANTED. (Code Civ. Proc. §§ 473(a)(1); 576.)

Cross-Defendant County of San Mateo's June 1, 2026 Request for Judicial Notice ("RJN") is GRANTED. (Evid. Code §§ 452(b), (d).)

Perea's proposed Second Amended Cross-Complaint (SACCC) (*see* May 6, 2026 Rillo Decl., Ex. B), among other changes/additions, seeks to add a Petition for Writ of Mandate, which, if asserted, would seek "to compel Defendant County to provide [Mr. Perea] with a defense in this action, indemnify him in connection with this action, and to advance, reimburse, and pay for his fees and costs necessarily incurred in this action." (Proposed SACC, ¶ 112.)

Having reviewed the parties' briefing and defendant Perea's proposed SACC, the Court grants the request for leave to amend. California's judicial policy is to exercise discretion liberally to permit amendment of pleadings. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939). Here, no trial date has been set, and at last report very little discovery has occurred. The case is also not yet at issue as there are unserved parties. The initial Case Management Conference is not scheduled to take place until Nov. 2, 2026.

Further, the County does not argue that any prejudice would result from the Court granting leave to amend, aside from the County having to defend against the new Petition for Writ of Mandate. However, that is not the type of "prejudice" the Court normally considers when deciding whether to grant leave to amend. Nor does the County argue that Mr. Perea unreasonably delayed in seeking leave to amend. The County only contends that Perea's proposed Petition for Writ of Mandate lacks substantive merit, primarily because Perea (as argued by the County) previously admitted/conceded a conflict of interest (*see* Govt. Code § 955.2(a)(3)), which the County argues necessarily establishes that the County properly and reasonably declined Perea's request that the County defend/indemnity Perea in this civil case. While the County is correct that courts have discretion to deny leave to amend where a proposed new cause of action clearly lacks merit or fails as a matter of law, ordinarily, courts do not decide the validity of a proposed new cause of action in deciding whether to grant leave to amend. After leave to amend is granted, the County will have the opportunity to attack the validity of the amended pleading. (*Kittredge*

Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) In other words, this motion is not for purposes of addressing the substantive merits.

Accordingly, the Motion for Leave to Amend is granted.

Mr. Perea's proposed SACC, which was filed with the moving papers attached to the supporting Declaration of Christopher Rillo, *is not deemed filed by virtue of this Motion for Leave being granted. Mr. Perea must separately file his proposed SACC with the Clerk's Office*, as a stand-alone document, within ten (10) days of notice of entry of this Order.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

9:00 AM

Line 8

25-CLJ-05131 CITIBANK, N.A. VS. LUKE HEMINGWAY

CITIBANK, N.A.
LUKE HEMINGWAY

JOAN WAGNER
PRO SE

Defendant's Motion to Vacate Default and Default Judgment

TENTATIVE RULING:

The unopposed Motion of Defendant Luke Hemingway ("Defendant") to Vacate Default and Default Judgment is GRANTED pursuant to Code of Civil Procedure section 473, subdivision (d).

NOTE: Defendant's Notice of Motion contains an incorrect address for Department 20. Department 20 is now located at 1050 Mission Road, Courtroom L, South San Francisco, CA, 94080.

On motion after notice to the other party, the court may set aside any void judgment or order. (Code Civ. Proc., § 473, subd. (d).) A court may set aside a default judgment valid on its face, but void, as a matter of law, due to improper service. (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371, citing *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) A default judgment is void against a defendant who was not served with a summons in the manner prescribed by statute. (*Id.*, at p. 371.) No time limit exists to bring a motion to vacate default judgment as void for lack of proper service. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207.)

Defendant contends that he was not properly served with the Summons and Complaint and therefore the default and default judgment entered against him are void. The proof of service of the summons and Complaint provides that a registered process server served Defendant by personal service on July 12, 2025, describing Defendant as "a blonde-haired white male contact 25-35 years of age, 5'10" - 6'0" tall and weighing 120-140 lbs." (Defendant's Decl., Exh. B.) The filing of a proof of service by a registered process server creates a rebuttable presumption that service was proper. (*Chinese Theater, LLC v. Starline Tours USA, Inc.* (2025) 115 Cal.App.5th 1048, 1059, citing Evid. Code, § 647 ["The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return."].) This rebuttable presumption affecting the burden of producing evidence is merely a preliminary assumption in the absence of contrary evidence. (*Id.* at p. 1059.) The process server's return may be impeached by contradictory evidence. (*Ibid.*) Defendant rebuts this presumption by providing evidence to support that the process server's description does not match his physical description. (Defendant's Decl., and Exh. A.) Plaintiff has not opposed this Motion, and therefore Defendant's evidence is undisputed.

Accordingly, the default entered on November 5, 2025 and default judgment entered on December 4, 2025 against Defendant are VACATED. Defendant is to file and serve his Answer by June 26, 2026.